

HOUSE No. 134

The Commonwealth of Massachusetts

PRESENTED BY:

Norman J. Orrall

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to agricultural crop and property destruction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>1/15/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>5/15/2025</i>

HOUSE No. 134

By Representative Orrall of Lakeville, a petition (accompanied by bill, House, No. 134) of Norman J. Orrall relative to operating off-highway or recreational vehicles that damage or destroy certain field crop products or agricultural property. Agriculture.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 97 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to agricultural crop and property destruction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 242 Section 7B of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out subsection (a) and inserting in place thereof
3 the following subsection: -

4 (a) Any person who, (i) operates an off-highway or recreational vehicle in a manner that
5 damages or destroys a field crop product or agricultural property situated on the land of another,
6 or (ii) without the permission of the owner, willfully and intentionally removes, damages or
7 destroys, a field crop product or property used primarily for agricultural purposes situated on the
8 land of another, shall be liable to the owner of such product or property in tort.

9 SECTION 2. Subsection (f) of said section 7B of said chapter 242, as so appearing, is
10 hereby amended by inserting after the words “husbandry, structure”, in line 27, the words:- or
11 device